

BEFORE THE STATE BOARD OF PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2021-2966

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN THE STATE OF COLORADO OF DAVID WILLIAM MATHESON, LICENSE NO. LPC 14293,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Professional Counselor Examiners ("Board") and David William Matheson ("Respondent"), as follows:

1. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado on January 3, 2018, having been issued license number LPC 14293, and is currently so licensed.

2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").

3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2021-2966 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2021-2966. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

4. Respondent admits the following:

- a. Respondent shared information regarding the Jurisprudence exam, giving others an unfair advantage, despite the explicit direction on the exam webpage to not share information.

5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-245-224(1)(b) and (s), C.R.S., which states:

12-245-224. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 245 violates this article 245 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article 245, an applicable provision of article 20 or 30 of this title 12, a rule promulgated pursuant to this article 245 or any order of a board established pursuant to this article 245;

(s) Has resorted to fraud, misrepresentation, or deception in applying for or in securing licensure or taking any examination provided for in this article 245;

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Respondent for violations of section 12-245-224(1)(b) and (s), C.R.S. This Order is effective as a Letter of Admonition, set forth by section 12-20-404(4), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete ten (10) hours of Board-approved professional continuing education ("CE") courses in the areas of ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

9. On September 10, 2021 the Board reviewed Respondent's submitted ten (10) CE hours which the Board has accepted to complete the CE requirements.

TERMS AND CONDITIONS

10. Respondent will strictly observe the prohibitions set forth in section 12-245-224, C.R.S., and will ensure that he does not engage in any activities that are

prohibited and that he practices in accordance with the generally accepted standards of practice.

11. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

12. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

13. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-20-403 and 12-245-226, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

14. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

15. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

16. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-245-224, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to sections 12-20-403 and 12-245-226, C.R.S.

17. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

18. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

19. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with

the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

20. This Order shall be admissible as evidence at any hearing held before the Board.

21. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT

David Matheson Digitally signed by David Matheson
Date: 2021.09.19 19:21:27 -06'00'

DAVID WILLIAM MATHESON
LICENSE No. LPC 14293

AGREED TO AND ORDERED BY:

STATE BOARD OF PROFESSIONAL COUNSELOR
EXAMINERS

Reina Sbarbaro-Gordon Digitally signed by Reina Sbarbaro-Gordon
DN: cn=Reina Sbarbaro-Gordon, o=Division of
Professions and Occupations, ou=Mental Health
Program Director, email=reina.sbarbaro-
gordon@state.co.us, c=US
Date: 2021.09.22 14:30:43 -06'00'

REINA SBARBARO-GORDON
Program Director

Effective this 22 day of September,
2021.